SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 227 of 2011 (YEAR: 2012)

CORAM: G.S. SINGHVI, H.L. DATTU

Sanjay Chandra
... Appellant(s) / Petitioner(s)
Versus
Central Bureau of Investigation
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 439 CrPC, Article 21

JUDICIAL HEADNOTE & SUMMARY

Reaffirmed that the primary purpose of bail is securing attendance at trial, not pre-conviction punishment, even in complex corporate and economic cases.

RATIO DECIDENDI

The Court held that: Reaffirmed that the primary purpose of bail is securing attendance at trial, not pre-conviction punishment, even in complex corporate and economic cases. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Sanjay Chandra v. Central Bureau of Investigation (Criminal Appeal No. 227 of 2011) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 439 CrPC, Article 21. Reaffirmed that the primary purpose of bail is securing attendance at trial, not pre-conviction punishment, even in complex corporate and economic cases.

OPERATIVE ORDER

ORDER: Decided